



ND-4

FILE DATE: 05/19/2026

AG CASE #: NC-1-1249605441

ARBITRATOR: Maneesha Sharma

**ARBITRATOR'S DECISION
FOR THE MANUFACTURER**

Consumer: Dr. Jimmy Hu
Address: 320 W. 38th Street
Apt. 2427
New York, NY 10018

Manufacturer: Hyundai Motor America
Address: 1122 Cranbury South River Rd.
Jamesburg, NJ 08831

Actual Hearing Date (oral hearings only, whether in person or virtual): 06/09/2026

Date Reviewed (documents only cases): _____

☐ Ex Parte Award (check if only one party appeared at hearing)

SUMMARY OF ISSUES IN DISPUTE (check those items in dispute)

- ☐ 1. Whether the vehicle is primarily used for personal, family or household purposes.
- ☒ 2. Whether there were 4 or more repair attempts for the same problem within 18,000 miles or 24 months, whichever is earlier.
- ☒ 3. Whether the problem continued to exist at the end of the 4th repair attempt.
- ☒ 4. Whether the vehicle was out of service due to repairs for 30 or more days within 18,000 miles or 24 months, whichever is earlier.
- ☒ 5. Whether the problem substantially impaired the value of the vehicle to the consumer.
- ☐ 6. Whether the manufacturer failed to commence repairs within 20 days of receiving the consumer's notice of the dealer's refusal to make repairs.
- ☐ 7. Whether the problem is a result of the consumer's abuse, neglect or unauthorized modification or alteration of the vehicle.
- ☐ 8. Other:

SUMMARY OF EVIDENCE

Consumer:

Consumer purchased new 2024 WAGON ION from Hyundai Brooklyn (currently in his possession under a lease extension renewed on a month to month basis as he can have it available for inspection if needed). Consumer alleges the vehicle is a lemon as it has been out of service for over 200 days and he did not have access to a loaner the whole (part of the time) and has approx. 1,800 in expenses associated w having to take cabs etc to work he is a physician. He is concerned about lost time dealing with the dealership who operated in bad faith. He states he brought the car to Paramus NJ workshop for battery draining issue, even when fully charged, he states this is a manufacturing defect and the total days out of service qualify the vehicle as a lemon. He reviewed his experience being stranded in Feb 2026 and the car did not start, the car was towed and the roadside assistance was able to jumpstart the car. He is frustrated with the two Buy Back offers from the manufacturer and did not accept those not due to the \$ amount but was concerned about a clause related to the state of CA that he did not think applied. Subsequently, he had a lot of correspondence with the dealer and provided extensive exhibits. He summarized the days out of service as listed in his form but all factors are taken in totality. Arbitration provided full opportunity for consumer to cover timelines, RO and his position that the car is a lemon. Based on testimony that the vehicle is currently operating and no allegation that the use and value is impaired, the consumer has not met his burden of proof.

Manufacturer:

Counsel for manufacturer indicates the consumer testified the vehicle is in his possession and currently driving as intended so the case should be dismissed. Detailed review of ROs, and industry standard is for technician to duplicate customer concern and diagnostics performed. There was a first voluntary recall on TSV RO 356398 2/12/25 7,026 mileage and software update performed and multi part inspected completed. RO 258530 4/3/2025 mileage 8,148, concern of battery draining too quickly even when fully charged. The repair needed back order parts which is a challenge in whole industry. This RO not related to recall repairs, took time but loaner provided no charge. RO 363888 mileage 8662 2/18/2026 car not starting, customer is stranded, again battery replaced and NWP. Note electric vehicles batteries need to be replaced no guarantee by any manufacturer of a defect free car. Here the vehicle is operating at intended and still under warranty the consumer refused two buy back offers made, multiple attempts to contact his attorney. The dealership wants to make customer whole, however this car can not be deemed a lemon as the problem does not still exist and there were not four attempts to repair the same problem. Consumer has extended the lease and seeks reimbursement of 1800 in expenses when car out of service, second time he did not receive a loaner which is on a first come first serve basis. Unrelated to this lemon law arbitration. The manufacturer's argument is compelling.

ARBITRATOR'S FINDINGS (Check all that apply. Only one of the findings is necessary for a ruling in favor of the manufacturer.)

- ☐ 1. The vehicle is **not** primarily used for personal, family or household purposes.
- ☒ 2. There were **not** 4 or more repair attempts for the same problem within 18,000 miles or 24 months, whichever is earlier.
- ☒ 3. The vehicle was **not** out of service due to repairs for 30 or more days within 18,000 miles or 24 months, whichever is earlier.
- ☒ 4. The problem did **not** continue to exist at the end of the 4th repair attempt.
- ☒ 5. The problem did **not** substantially impair the value of the vehicle to the consumer.
- ☐ 6. The manufacturer did **not** fail to commence repairs within 20 days of receiving the consumer's notice of the dealer's refusal.
- ☐ 7. The problem is a result of the consumer's abuse, neglect or unauthorized modification or alteration of the vehicle.
- ☐ 8. Other: _____

CONCLUSION

Based on the findings, I find that the consumer does not qualify for a refund or a replacement vehicle under General Business Law '198-a (The Lemon Law). The decision is not intended to limit the consumer's rights under the manufacturer's warranty or the manufacturer's duty to repair under the Lemon Law (GBL, Sect. 198-a(B)). This decision is binding on both parties. However, a dissatisfied party, pursuant to CPLR Article 75, may seek judicial relief, by filing an application in court within 90 days of receiving this award.

DATED: 6/11/2026

Maneesha Sharma
Arbitrator's Signature

State of New York)

: SS.:

County of _____)

I hereby affirm upon my oath as arbitrator that I am the individual described in and who executed this instrument, which is my award.

DATED: 6/11/2026

Maneesha Sharma
Arbitrator's Signature

Date of mailing by Administrator
("Date of Issuance") '300.16(f)

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